

Indiana — Expungement Reference Pack

Indiana's “Second Chance Law” (I.C. 35-38-9) restricts access to adult records rather than erasing them, and runs on a strict one-petition-per-lifetime rule. A separate juvenile system (I.C. 31-39-8) governs delinquency records, including automatic expungement.

Adult statute	Juvenile statute	Case type	Lifetime limit
I.C. 35-38-9 (Second Chance Law)	I.C. 31-39-8	XP (Admin. Rule 8(B)(3))	One conviction petition

Read this first: “expungement” in Indiana means restricted access

Indiana's Second Chance Law does not erase a criminal history. It either **seals** records (Section 6) or **marks them expunged** while leaving them public (Section 7). Which one applies depends on the offense category. The system is built around a near-absolute “one bite at the apple” rule: a person may file only one conviction-expungement petition in their lifetime, so every eligible conviction across every Indiana county must be addressed together.

The five adult categories (Sections 1–5)

SECTION	WHAT IT COVERS	EFFECT
§1	Arrests and charges that did not lead to a conviction (dismissals, acquittals, no-file).	Sealed/removed. No filing fee. Now largely automatic — see below.
§2	Misdemeanors, and Class D/Level 6 felonies reduced to a misdemeanor (AMS).	Sealed (Section 6 treatment).
§3	Class D / Level 6 felonies with no serious bodily injury, not otherwise excluded.	Sealed (Section 6).
§4	More serious felonies with no serious bodily injury; discretionary.	Marked expunged, stays public (Section 7).
§5	Felonies that resulted in serious bodily injury; discretionary, prosecutor consent.	Marked expunged, stays public (Section 7).

Section 6 vs Section 7 — the core distinction

Every adult conviction order turns on this split, and the petition asks the court to act under one or the other for each matter:

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- **Section 6 (sealed):** The State Police Central Repository seals the records; sentencing-court, juvenile-court, and appellate records are permanently sealed; listed agencies may not release them without a court order. Disclosure is limited to a narrow set (prosecutor, defense, probation, FBI/DHS, bar examiners, SAFE Act, BMV/CDLIS) under court order.
- **Section 7 (marked expunged):** Court and public records stay public but must be clearly marked “expunged.” Agencies add an entry to the criminal-history database noting the expunged status. This is the treatment for the more serious Section 4 and 5 felonies.

Both order types must also seal or redact the underlying arrest records related to the expunged conviction (I.C. 35-38-9-6(g); -7(e)).

Recent change: Section 1 is now largely automatic

Under amendments to I.C. 35-38-9-1(b), when all charges are dismissed or the person is acquitted, the court must order expungement of the arrest immediately — without a separate petition. For non-conviction records that are not auto-expunged, a Section 1 petition may be filed one (1) year after the arrest, charge, or allegation (whichever is later), or after a vacated conviction becomes final; the prosecutor may consent to a shorter wait. Section 1 petitions carry no filing fee and are served on the prosecutor by the court.

The one-petition-per-lifetime rule

A petitioner may file a Section 2–5 conviction-expungement petition only once in a lifetime (I.C. 35-38-9-9(i)). Every eligible conviction in the county must be in that petition, and petitions in other counties must be coordinated and listed. The petition requires the petitioner to initial an acknowledgment of this rule and certify a good-faith effort to find all convictions. Getting this wrong can forfeit relief on convictions left out.

Common exclusions (Sections 2–5)

- Sex or violent offenders as defined by statute; persons required to register.
- Convictions for official misconduct, homicide, or human trafficking.
- Felonies resulting in serious bodily injury (limited to Section 5 treatment, with consent).
- Two or more felonies involving the unlawful use of a deadly weapon, not part of the same episode.
- Elected officials convicted of an offense while in office or as a candidate.

The juvenile system (I.C. 31-39-8)

Juvenile delinquency records run on a separate track with its own forms. There are two routes:

ROUTE	HOW IT WORKS
Petitioned expungement I.C. 31-39-8 signature/date review zone	The person petitions the juvenile court (filed in the original delinquency cause number; if multiple cases, file in each). The court weighs the I.C. 31-39-8-3 factors and may order records removed/destroyed, or — for serious violent felony matters — sealed and retained on a secure database, available to law enforcement but not the public without a court order.

Automatic expungement I.C. 31-39-8-3.5 participant/case info review zone	The court acts on its own motion, without a hearing, for non-felony offenses that are not firearm violations (I.C. 35-47-2 / 35-47-10), once the child is at least 19 or was discharged more than a year ago (whichever is later). The court enters an order granting (records destroyed) or denying (if automatic expungement would not serve the interests of justice).
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Which form for which situation

Arrest/charge dismissed or acquitted (adult)	Often automatic under §1(b); otherwise a Section 1 petition (no fee).
Adult conviction(s), any eligible category	Verified Petition under I.C. 35-38-9 — once per lifetime, all convictions together.
Juvenile record, person petitioning	Verified Petition for Expungement of Juvenile Delinquency Records (§31-39-8).
Juvenile, eligible for automatic clearing	Court acts on its own motion — Order Granting/Denying (§31-39-8-3.5).

Prepared as a plain-language reference for the Wilma knowledge base. Indiana's expungement statutes are amended yearly; this summarizes I.C. 35-38-9 and I.C. 31-39-8 as of June 2026 and is not legal advice. The one-petition-per-lifetime rule makes completeness critical — verify current statute and consult counsel before filing.

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